

Saint Martin's Parish Church Birmingham Act, 1960

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CHAPTER ix

An Act to confirm the removal of human remains from the churchyard of Saint Martin's Parish Church Birmingham and the erection thereon of a vestry hall and social centre to authorise the erection thereon of another building and the granting of leases of that building and for other purposes. [2nd June 1960.]

WHEREAS—

(1) The parish church of Saint Martin in the city of Birmingham (hereinafter referred to as "the church") was rebuilt in or about the year eighteen hundred and seventy-five on the site of an earlier church which was the parish church of the ancient parish of Birmingham:

(2) The church is surrounded by consecrated land (hereinafter referred to as "the churchyard") which was the churchyard of the ancient parish of Birmingham and which was formerly used for burials:

(3) Burials in the churchyard were discontinued pursuant to Orders in Council of Her late Majesty Queen Victoria dated the twentieth day of March eighteen hundred and fifty-seven the third day of February eighteen hundred and fifty-eight the sixth day of July eighteen hundred and fifty-nine the thirtieth day of June eighteen hundred and sixty the twenty-fifth day of July eighteen hundred and sixty-one and the twelfth day of December eighteen hundred and seventy-three:

(4) By a deed dated the twenty-first day of May eighteen hundred and seventy-nine the Reverend William Wilkinson then incumbent of the parish church of Saint Martin with the consent of the bishop of the diocese demised to the corporation of

Birmingham the churchyard and a right to use and deal with the same for all the purposes of the Birmingham Closed Burial Grounds Act 1878 for the term of nine hundred and ninety-nine years:

(5) A plan showing the churchyard was in November nineteen hundred and fifty-nine deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and in this Act is referred to as the deposited plan :

(6) Subject to the demise to the corporation of Birmingham the freehold of the church and the churchyard is vested in the rector of the parish of Saint Martin Birmingham:

(7) The Reverend Canon Bryan Stuart Westmacott Green is at present the rector thereof:

(8) In the year nineteen hundred and fifty-three a petition was presented by the rector and churchwardens of the said parish to the late chancellor of the diocese of Birmingham (in which diocese the church and churchyard are situate) praying that a faculty might be granted to them authorising them to carry out certain works in the church and churchyard which included the building of a new vestry hall and social centre in the churchyard on the south side of the church:

(9) It appeared in the said petition that thirty-seven graves containing the remains of eighty-six or more persons would be affected by the said works and there were lodged with the petition a list of the graves affected and the names of the persons buried therein so far as the same could be ascertained from the tombstones or otherwise:

(10) The late chancellor of the diocese of Birmingham decreed that citation should issue and that if there were no notice of opposition a faculty should issue as prayed:

(11) On the twentieth day of August nineteen hundred and fifty-three a faculty was granted authorising or purporting to authorise the rector and churchwardens of the said parish to carry out among other works the building of the said new vestry hall and social centre on the south side of the church in accordance with plans deposited in the consistory court of the diocese of Birmingham:

(12) By an oversight the said faculty contained no reference to the removal of human remains necessitated by such works:

(13) The rector and churchwardens of the said parish caused the human remains buried in the churchyard on the south side of the church to be removed and to be reinterred in other consecrated ground and caused the said new vestry hall and social centre to be erected on that part of the churchyard which is shown on the deposited plan and is thereon coloured blue:

(14) It was not appreciated that in the absence of any authority in the said faculty to remove the human remains the removal thereof was or may have been forbidden by the provisions of section 25 of the Burial Act 1857:

(15) It was not appreciated that the erection of the new vestry hall and social centre on the churchyard was forbidden by the provisions of section 3 of the Disused Burial Grounds Act 1884:

(16) The new vestry hall and social centre are needed for church purposes affecting the said parish and it is expedient that the removal of the human remains and the erection of the vestry hall and social centre should be confirmed by the authority of Parliament:

(17) It is expedient that another building should be erected on another part of the churchyard:

(18) Such other part of the churchyard no longer contains any human remains and is shown on the deposited plan and is thereon coloured pink:

(19) The corporation of Birmingham have agreed with the rector of the parish of Saint Martin Birmingham to demise to the rector subject to the terms of a lease the parts of the churchyard respectively coloured blue and pink on the deposited plan:

(20) It is expedient that such proposed building should be used in manner authorised by this Act:

(21) It is expedient that the several provisions contained in this Act should be enacted:

(22) The objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Saint Martin's Parish Church Short title. Birmingham Act 1960.

2.—(1) In this Act unless there be something in the subject or Interpretation. context repugnant to such construction—

“ the church ” means the parish church of Saint Martin in the city of Birmingham;

“ the churchyard ” means the churchyard surrounding the church;

“ the consistory court ” means the consistory court of the diocese of Birmingham;

“ the faculty of 1953 ” means the faculty dated the twentieth day of August nineteen hundred and fifty-three granted by the consistory court to the rector and churchwardens of the parish;

“ the parish ” means the parish of Saint Martin in the city of Birmingham as for the time being constituted;

“ the parochial church council ” means the parochial church council of the parish;

“ the rector ” means the rector for the time being of the parish and during a vacancy in the benefice concerned includes the sequestrators of the income of the benefice;

“ the specified land ” means that part of the churchyard which is shown on the deposited plan and is thereon coloured pink.

(2) Unless otherwise expressly stated any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Sanction and confirmation of removal of human remains.

3. Notwithstanding the omission from the faculty of 1953 of any reference to the removal of human remains the removal from the churchyard of the human remains referred to in the petition leading to the faculty of 1953 and in the papers lodged with the said petition is hereby sanctioned and confirmed.

Sanction and confirmation of erection of new vestry hall and social centre.

4. Notwithstanding the provisions of section 3 of the Disused Burial Grounds Act 1884 the erection of the new vestry hall and social centre referred to in the faculty of 1953 on that part of the churchyard which is shown on the deposited plan and is thereon coloured blue and the permanent retention thereof are hereby sanctioned and confirmed and the rector is hereby authorised at any time and from time to time subject to a faculty in that behalf being first granted by the consistory court to rebuild repair and maintain the said vestry hall and social centre as occasion may require.

Power to develop specified land.

5.—(1) Notwithstanding anything contained in any enactment it shall be lawful at any time after the passing of this Act to build on the specified land to use the same or the building thereon or any part thereof and to grant leases of the same or the building thereon or any part thereof in accordance with the provisions of this section as if the specified land had never been consecrated or set apart for the purpose of burial of human remains.

(2) Subject to a faculty in that behalf being first granted by the consistory court the rector may erect a building on the specified land and retain the same permanently thereon and rebuild repair and maintain the same from time to time as occasion may require.

(3) Any such building or any part thereof may be used for any one or more of the following purposes:—

- (a) for the purpose of a robing room for the choir of the church;
- (b) for the purposes of meetings in connection with the work of the church;
- (c) for the purpose of carrying on the trade or business of retail dealers in religious or other books pictures and stationery appropriate to a church bookshop in religious educational equipment and in church requisites and equipment of every description;
- (d) for any other purpose (whether of a kindred nature or not) authorised by a faculty granted by the consistory court.

(4) Subject to a faculty in that behalf being first granted by the consistory court and to the provisions as to use contained in the last preceding subsection of this section the rector may grant a lease of any such building or any part thereof to any person for such term at such rent and subject to such covenants and provisions as he shall from time to time think fit and without prejudice to the generality of the foregoing power he may in particular grant a lease of the whole or any part of the said building for a term not exceeding ninety-nine years to a person who shall covenant not to carry on any trade or business upon the demised premises other than a trade or business mentioned in paragraph (c) of subsection (3) of this section.

(5) The consistory court shall have power to grant a faculty for the purposes of this section on the application of the rector or (with the consent of the rector) of any other person interested therein.

6.—(1) Any rents and profits to be received in respect of the specified land or any building erected thereon shall be paid to the treasurer for the time being of the parochial church council. Application of rents and profits of specified land.

(2) The parochial church council shall apply the said rents and profits for any one or more of the following purposes (that is to say):—

- (a) in the discharge of any sums borrowed in order to pay the costs and expenses incurred in the erection of any building on the specified land;
- (b) in the erection alteration improvement or repair of any building on the specified land or the execution of any other work thereon;
- (c) for such church purposes affecting the parish as the parochial church council shall think fit.

Saving for
town and
country
planning.

7. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

8. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the rector.

Table of Statutes referred to in this Act

Short title	Session and chapter
Burial Act 1857	20 & 21 Vict. c. 81.
Birmingham Closed Burial Grounds Act 1878	41 & 42 Vict. c. xlii.
Disused Burial Grounds Act 1884 ..	47 & 48 Vict. c. 72.
Town and Country Planning Act 1947 ..	10 & 11 Geo. 6 c. 51.

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